

APPLICATION AND CERTIFICATE FOR PAYMENT

Page: 1 of 3

TO OWNER:Summa Terra
79 W 900 N
Suite B
Springville, UT 84663

PROJECT:Hunters Landing
79 W 900 N
Suite B
Springville, UT 84663

APPLICATION NO.: 1
PERIOD TO : Feb 28, 2022
PROJECT NOS.: 22-10004

Distribution to:
☐ OWNER
☐ ARCHITECT
☐ CONTRACTOR
☐
☐

FROM Makers Line
CONTRACTOR: 537 W 600 S
Suite 400
Salt Lake City, UT 84101
United States
CONTRACT FOR:Hunters Landing

ARCHITECT:

CONTRACT DATE : Feb 25, 2022

DocuSigned by:

Tim Foster

APPLICATION AND CERTIFICATE FOR PAYMENT

Application is made for payment, as shown below, in connection with the Contract. Continuation sheet is attached.

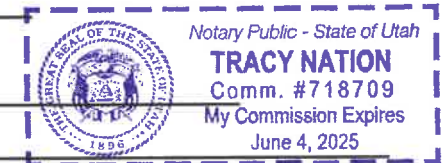
1. ORIGINAL CONTRACT SUM	\$	23,650,879.00
2. Net change by change orders	\$	0.00
3. CONTRACT SUM TO DATE (Line1 +/- 2)	\$	23,650,879.00
4. TOTAL COMPLETED & STORED TO DATE	\$	470,545.50
(Column G on G703)		
5. RETAINAGE:		
(Total retainage Column I of G703)	\$	750.00
6. TOTAL EARNED LESS RETAINAGE	\$	469,795.50
(Line 4 less Line 5 Total)		
7. LESS PREVIOUS CERTIFICATES FOR PAYMENT		
(Line 6 from prior Certificate)	\$	0.00
8. CURRENT PAYMENT DUE	\$	469,795.50
9. BALANCE TO FINISH, INCLUDING RETAINAGE		
(Line 3 less Line 6)	\$	23,181,083.50

The undersigned Contractor certifies that to the best of the Contractor's knowledge, information and belief the work covered by this Application for Payment has been completed in accordance with the Contract Documents, that all amounts have been paid by the Contractor for Work for which previous Certificates for payment were issued and payments received from the Owner, and that current payment shown herein is now due.

Contractor: Makers Line

By: Mary Ann Smith Date: 3/02/2022State of: UtahCounty of: Salt Lake

Subscribed and sworn to before

me this 2nd day of MarchNotary Public: Tracy NationMy Commission expires: June 4, 2025**ARCHITECT'S CERTIFICATE FOR PAYMENT**

In accordance with the Contract Documents, based on on-site observations and the data comprising the above application, the Architect certifies to the Owner that to the best of the Architect's knowledge, information and belief the Work has progressed as indicated, the quality of Work is in accordance with the Contract Documents, and the Contractor is entitled to the payment of the AMOUNT CERTIFIED.

AMOUNT CERTIFIED.....\$

(Attach explanation if amount certified differs from the amount applied for. Initial figures on this Application and on the Continuation Sheet that are changed to conform to the amount certified.)

ARCHITECT:

By: _____ Date: _____

This Certificate is not negotiable. The AMOUNT CERTIFIED is payable only to the Contractor named herein. Issuance, payment and acceptance of payment are without prejudice to any rights of the Owner or Contractor under this Contract.

CHANGE ORDER SUMMARY		ADDITIONS	DEDUCTIONS
Change Order approved in previous months by Owner		0.00	0.00
APPROVED THIS MONTH			
Number	Date Approved		
Current Total:		0.00	0.00
Net Change by Change Orders			0.00

Page: 2

APPLICATION NUMBER: 1

APPLICATION DATE: Mar 02, 2022

PERIOD TO: Feb 28, 2022

A	B	C	D		E	F	G		H	I
ITEM NO.	DESCRIPTION OF WORK	ORIGINAL BUDGET	WORK COMPLETED (D+E)		MATERIAL PRESENTLY STORED	TOTAL COMPLETED AND STORED TO DATE	PER-%(G/C)	BALANCE TO FINISH	RETAINAGE	
			FROM PREVIOUS APPLICATION	THIS PERIOD						
01-0010	Overhead	238,113.00	0.00	14,882.06	0.00	14,882.06	6.25	223,230.94	0.00	
01-0340	Mobilization	32,100.00	0.00	32,100.00	0.00	32,100.00	100.00	0.00	0.00	
01-0750	Final Clean Up	60,443.00	0.00	0.00	0.00	0.00	0.00	60,443.00	0.00	
01-0790	General Conditions	877,090.00	0.00	54,818.12	0.00	54,818.12	6.25	822,271.88	0.00	
01-0930	General Requirements	293,535.00	0.00	18,345.94	0.00	18,345.94	6.25	275,189.06	0.00	
01-1470	Temporary Weather Protection	155,000.00	0.00	0.00	0.00	0.00	0.00	155,000.00	0.00	
02-0150	Erosion Control SWPPP	15,000.00	0.00	15,000.00	0.00	15,000.00	100.00	0.00	750.00	
02-0290	On-Site Demolition	9,800.00	0.00	0.00	0.00	0.00	0.00	9,800.00	0.00	
03-0020	Cast-In-Place Concrete	454,250.00	0.00	0.00	0.00	0.00	0.00	454,250.00	0.00	
03-0230	Concrete Insulation	31,370.00	0.00	0.00	0.00	0.00	0.00	31,370.00	0.00	
03-0330	Gypsum Concrete	104,850.00	0.00	0.00	0.00	0.00	0.00	104,850.00	0.00	
03-0350	Anchor Bolts	23,250.00	0.00	0.00	0.00	0.00	0.00	23,250.00	0.00	
03-0600	Concrete Curb and Sidewalk	181,300.00	0.00	0.00	0.00	0.00	0.00	181,300.00	0.00	
04-0030	Masonry	437,750.00	0.00	0.00	0.00	0.00	0.00	437,750.00	0.00	
05-0090	Metal Framing	440,000.00	0.00	0.00	0.00	0.00	0.00	440,000.00	0.00	
06-0010	Arch Woodwrk (Unit Cabinetry)	466,669.00	0.00	0.00	0.00	0.00	0.00	466,669.00	0.00	
06-0030	Countertops	228,576.00	0.00	0.00	0.00	0.00	0.00	228,576.00	0.00	
06-0090	Finish Carpentry - Interiors	344,663.00	0.00	0.00	0.00	0.00	0.00	344,663.00	0.00	
06-0170	Rough Carpentry	3,422,855.00	0.00	0.00	0.00	0.00	0.00	3,422,855.00	0.00	
07-0050	Bituminous Dampproofing	5,000.00	0.00	0.00	0.00	0.00	0.00	5,000.00	0.00	
07-0110	Caulking & Sealants	49,250.00	0.00	0.00	0.00	0.00	0.00	49,250.00	0.00	
07-0130	Stucco/ Siding	580,570.00	0.00	0.00	0.00	0.00	0.00	580,570.00	0.00	
07-0170	Deck Coating	89,000.00	0.00	0.00	0.00	0.00	0.00	89,000.00	0.00	
07-0230	Insulation - Interiors	254,695.00	0.00	0.00	0.00	0.00	0.00	254,695.00	0.00	
07-0250	Membrane Roofing	248,130.00	0.00	0.00	0.00	0.00	0.00	248,130.00	0.00	
07-0310	Soffit & Fascia	48,300.00	0.00	0.00	0.00	0.00	0.00	48,300.00	0.00	
07-0350	Roof Specialties & Accessories	1,670.00	0.00	0.00	0.00	0.00	0.00	1,670.00	0.00	
08-0010	Access Doors Overhead	57,250.00	0.00	0.00	0.00	0.00	0.00	57,250.00	0.00	
08-0170	Entrance & Storefronts	69,340.00	0.00	0.00	0.00	0.00	0.00	69,340.00	0.00	
08-0260	Doors & Frames	871,450.00	0.00	0.00	0.00	0.00	0.00	871,450.00	0.00	
08-0290	Mirrors	27,585.00	0.00	0.00	0.00	0.00	0.00	27,585.00	0.00	
08-0300	Windows	106,109.00	0.00	0.00	0.00	0.00	0.00	106,109.00	0.00	
08-0320	Spcl Door-Ext(Fire Rated Door)	33,992.00	0.00	0.00	0.00	0.00	0.00	33,992.00	0.00	
09-0050	Ceramic Tile	7,414.00	0.00	0.00	0.00	0.00	0.00	7,414.00	0.00	
09-0130	Flooring	424,508.00	0.00	0.00	0.00	0.00	0.00	424,508.00	0.00	
09-0190	Painting - Site Improvements	415,951.00	0.00	0.00	0.00	0.00	0.00	415,951.00	0.00	
09-0250	Gypsum Board Install	1,352,896.00	0.00	0.00	0.00	0.00	0.00	1,352,896.00	0.00	
10-0150	Fire Extinguisher Cabinets	6,700.00	0.00	0.00	0.00	0.00	0.00	6,700.00	0.00	

Makers Line

CONTINUATION SHEET

Page: 3

APPLICATION AND CERTIFICATE FOR PAYMENT, containing
Contractor's signed Certification is attached.
In tabulation below, amounts are stated to the nearest cent.
Use Column I on Contracts where variable retainage for line items may apply.

APPLICATION NUMBER: 1

APPLICATION DATE: Mar 02, 2022

PERIOD TO: Feb 28, 2022

A ITEM NO.	B DESCRIPTION OF WORK	C ORIGINAL BUDGET	E WORK COMPLETED (D+E)		F MATERIAL PRESENTLY STORED	G TOTAL COMPLETED AND STORED TO DATE	PER-%(G/C)	H BALANCE TO FINISH	I RETAINAGE
			D FROM PREVIOUS APPLICATION	THIS PERIOD					
10-0250	Knox Boxes	350.00	0.00	0.00	0.00	0.00	0.00	350.00	0.00
10-0310	Postal Specialties	28,500.00	0.00	0.00	0.00	0.00	0.00	28,500.00	0.00
10-0330	Signage-Inter/Exter Code	31,238.00	0.00	0.00	0.00	0.00	0.00	31,238.00	0.00
10-0370	Toilet & Bath Accessories	33,575.00	0.00	0.00	0.00	0.00	0.00	33,575.00	0.00
11-0110	Residential Appliances	561,094.00	0.00	0.00	0.00	0.00	0.00	561,094.00	0.00
12-0010	Blinds	42,565.00	0.00	0.00	0.00	0.00	0.00	42,565.00	0.00
13-0010	Carports	108,689.00	0.00	0.00	0.00	0.00	0.00	108,689.00	0.00
13-0030	Swimming Pools	236,400.00	0.00	0.00	0.00	0.00	0.00	236,400.00	0.00
14-0010	Chutes (Waste And Recycling)	19,195.00	0.00	0.00	0.00	0.00	0.00	19,195.00	0.00
14-0050	Elevators	226,650.00	0.00	0.00	0.00	0.00	0.00	226,650.00	0.00
21-0020	Wet Pipe Sprinkler Systems	311,952.00	0.00	0.00	0.00	0.00	0.00	311,952.00	0.00
22-0010	Plumbing Fixture Accessories	89,200.00	0.00	0.00	0.00	0.00	0.00	89,200.00	0.00
22-0050	Plumbing Systems	1,638,000.00	0.00	0.00	0.00	0.00	0.00	1,638,000.00	0.00
23-0090	HVAC	2,013,439.00	0.00	0.00	0.00	0.00	0.00	2,013,439.00	0.00
26-0010	Basic Electrical Materials	1,552,213.00	0.00	0.00	0.00	0.00	0.00	1,552,213.00	0.00
26-0090	Temp Power & Usage	15,000.00	0.00	0.00	0.00	0.00	0.00	15,000.00	0.00
26-0130	Electric Car Charging Allowance	18,000.00	0.00	0.00	0.00	0.00	0.00	18,000.00	0.00
31-0100	Earthwork	1,041,238.00	0.00	0.00	0.00	0.00	0.00	1,041,238.00	0.00
31-0200	Earth Moving	91,951.00	0.00	0.00	0.00	0.00	0.00	91,951.00	0.00
32-0200	Asphalt Paving	170,414.00	0.00	0.00	0.00	0.00	0.00	170,414.00	0.00
32-0300	Fencing	76,736.00	0.00	0.00	0.00	0.00	0.00	76,736.00	0.00
32-0700	Landscaping and Planting	137,413.00	0.00	0.00	0.00	0.00	0.00	137,413.00	0.00
GC-0010	Contingency	561,532.00	0.00	0.00	0.00	0.00	0.00	561,532.00	0.00
GC-0020	Profit	893,302.00	0.00	55,831.38	0.00	55,831.38	6.25	837,470.62	0.00
GC-0040	Insurance	257,161.00	0.00	257,161.00	0.00	257,161.00	100.00	0.00	0.00
GC-0060	Development Fee	1,028,648.00	0.00	22,407.00	0.00	22,407.00	2.18	1,006,241.00	0.00
Contract Total:		23,650,879.00	0.00	470,545.50	0.00	470,545.50	1.99	23,180,333.50	750.00
	null								
	null Total:								
	All OCO Total:								
Project Total:		23,650,879.00	0.00	470,545.50	0.00	470,545.50	1.99	23,180,333.50	750.00



Invoice

Makers Line, LLC
537 W 600 S, Suite 400
Salt Lake City, UT 84101

Date	Invoice #
3/02/2022	INV-01

Bill To:

Summa Terra
79 W 900 N, Suite B
Springville, UT 84663

Project	
22-10004 Hunters Landing	
Description	Amount
Original Scope:	
01-0010 Overhead	\$14,882.06
01-0340 Mobilization	\$32,100.00
01-0750 Final Clean Up	\$-
01-790 General Conditions	\$54,818.12
01-930 General Requirements	\$18,345.94
01-1470 Temporary Weather Protection	\$-
02-0150 Erosion Control SWPPP	\$15,000.00
GC-0020 Profit	\$55,831.38
GC-0040 Insurance	\$257,161.00
GC-0060 Development Fee	\$22,407.00
Retention @ 5%	\$(750.00)

Balance Due	\$	469,795.50
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UTAH CONDITIONAL WAIVER AND RELEASE UPON PROGRESS PAYMENT

Property Name: Hunters Landing

Property Location: 407 W 12th St., Ogden UT 84401

Undersigned's Customer: Summa Terra

Invoice/Payment Application Number: INV-01

Payment Amount: \$ 469795.50

Payment Period: through 2/28/2022

Check #: _

To the extent provided below, this document becomes effective to release and the undersigned is considered to waive any notice of lien or right under Utah Code Ann., Title 38, Chapter 1a, Preconstruction and Construction Liens, or any bond right under Utah Code Ann., Title 14, Contractors' Bonds, or Section 63G-6a-1103 related to payment rights the undersigned has on the above described Property once:

- (1) the undersigned endorses a check in the above referenced Payment Amount payable to the undersigned; and
- (2) the check is paid by the depository institution on which it is drawn.

This waiver and release applies to a progress payment for the work, materials, equipment, or a combination of work, materials, and equipment furnished by the undersigned to the Property or to the Undersigned's Customer which are the subject of the Invoice or Payment Application, but only to the extent of the Payment Amount. This waiver and release does not apply to any retention withheld; any items, modifications, or changes pending approval; disputed items and claims; or items furnished or invoiced after the Payment Period.

The undersigned warrants that the undersigned either has already paid or will use the money the undersigned receives from this progress payment promptly to pay in full all the undersigned's laborers, subcontractors, materialmen, and suppliers for all work, materials, equipment, or combination of work, materials, and equipment that are the subject of this waiver and release.

Dated: 03/01/2022 _____

Company Name

Digitally signed by Mary Ann Smith
DN: C=US, E=maryann@makersline.com, O=Makers Line, CN=Mary Ann Smith
Date: 2022.03.03 07:43:22-07'00'

Mary Ann Smith By: _____ Printed Name

Signature _____

Its: _____
Title

e-mail copy to:

OR Mail original to:

CES & R

2949 S. Main St | S.L.C. UT 84115
Tel: 801-487-8715 | Fax: 801-466-9153

Invoice	05844
Date	2/23/2022
Page	1

Remit To:

CES&R
2949 So Main St
SLC, UT 84115

Bill To:

Makersline/QFactor
tracy@makersline.com
accounting@makersline.com

Ship To:

Makersline/QFactor
537 West 600 South
Suite # 400
Salt Lake City UT 84101

Purchase Order No.		Customer ID		Salesperson ID		Shipping Method		Payment Terms		Req Ship Date		Master No.	
HUNTERS LANDING		MAKS/Q		JENNIFER		WILL CALL		Net 30 Days		2/23/2022		128,836	
Ordered	Shipped	B/O	Item Number	Description					Discount	Unit Price	Ext. Price		
1	1	0	OSET CR	Digital Plan Setup/Retrieval					\$0.0000	\$0.0000	\$0.00		
546	546	0	OD42 CR	Bond Copies 30 x 42 Per Sheet					\$0.0000	\$1.3500	\$737.10		
3	3	0	OCHI CR	Oce Chicago Screw Per Set					\$0.000	\$2.530	\$7.59		
Date Rec'd: <u>2/23/2022</u> Pay App # <u>1</u> CO: _____ Job: <u>22-10004</u> \$: <u>800.17</u> CostCode: <u>01-0340</u> Approved By: _____ Mary Ann Smith Digitally signed by Mary Ann Smith DN: c=US, E=maryann@makersline.com, ou=Makersline, cn=Mary Ann Smith Date: 2022.02.23 07:43:05-0700 2/23 COPY TO MARY ANN													

HUNTERS LANDING
ORDERED, DELIVERED: MARY ANN SMITH
385-502-4516
3, FULL SIZE

TERMS: NET 30 DAYS
INVOICES ARE CONSIDERED PAST DUE IF PAYMENT IS NOT RECEIVED WITHIN THIRTY DAYS
OF THE DATE OF PURCHASE OR "INVOICE DATE" AND WILL RESULT IN AN ADDITIONAL
FINANCE CHARGE OF 1.5% PER MONTH WITH EFFECTIVE ANNUAL RATE OF 18%. CUSTOMER
FURTHER AGREES TO PAY ALL ATTORNEY AND COURT COSTS SHOULD COLLECTION
PROCEDURES BE NECESSARY.

Subtotal	\$744.69
Misc	\$0.00
Tax	\$55.48
Freight	\$0.00
Trade Discount	\$0.00
Total	\$800.17

Certificate Of Completion

Envelope Id: E80B1E9C13074ABEB051E0688BF9FC7B

Status: Completed

Subject: Please DocuSign: 22-10004 Hunters Landing Pay App 01.pdf

Source Envelope:

Document Pages: 6

Signatures: 1

Envelope Originator:

Certificate Pages: 4

Initials: 0

Mary Ann Smith

AutoNav: Enabled

maryann@makersline.com

Envelopeld Stamping: Enabled

IP Address: 128.177.29.246

Time Zone: (UTC-07:00) Mountain Time (US & Canada)

Record Tracking

Status: Original

Holder: Mary Ann Smith

Location: DocuSign

3/2/2022 4:39:00 PM

maryann@makersline.com

Signer Events

Tim Foster

timfoster@makersline.com

President

Makers Line

Security Level: Email, Account Authentication
(None)**Signature**

DocuSigned by:

1BC834D8EA714E5...

Signature Adoption: Pre-selected Style

Using IP Address: 128.177.29.246

Signed using mobile

Timestamp

Sent: 3/2/2022 4:40:20 PM

Resent: 3/3/2022 7:34:05 AM

Viewed: 3/3/2022 7:38:51 AM

Signed: 3/3/2022 8:04:05 AM

Electronic Record and Signature Disclosure:

Accepted: 3/3/2022 7:38:50 AM

ID: 942f78c2-fe21-4774-88f5-640ea52379de

In Person Signer Events**Signature****Timestamp****Editor Delivery Events****Status****Timestamp****Agent Delivery Events****Status****Timestamp****Intermediary Delivery Events****Status****Timestamp****Certified Delivery Events****Status****Timestamp****Carbon Copy Events****Status****Timestamp**

Michael Sears

michaels@makersline.com

Security Level: Email, Account Authentication
(None)**COPIED**

Sent: 3/2/2022 4:40:20 PM

Electronic Record and Signature Disclosure:

Not Offered via DocuSign

Witness Events**Signature****Timestamp****Notary Events****Signature****Timestamp****Envelope Summary Events****Status****Timestamps**

Envelope Sent

Hashed/Encrypted

3/2/2022 4:40:20 PM

Certified Delivered

Security Checked

3/3/2022 7:38:51 AM

Signing Complete

Security Checked

3/3/2022 8:04:05 AM

Completed

Security Checked

3/3/2022 8:04:05 AM

Payment Events**Status****Timestamps****Electronic Record and Signature Disclosure**

ELECTRONIC RECORD AND SIGNATURE DISCLOSURE

From time to time, Makers Line LLC (we, us or Company) may be required by law to provide to you certain written notices or disclosures. Described below are the terms and conditions for providing to you such notices and disclosures electronically through the DocuSign system. Please read the information below carefully and thoroughly, and if you can access this information electronically to your satisfaction and agree to this Electronic Record and Signature Disclosure (ERSD), please confirm your agreement by selecting the check-box next to 'I agree to use electronic records and signatures' before clicking 'CONTINUE' within the DocuSign system.

Getting paper copies

At any time, you may request from us a paper copy of any record provided or made available electronically to you by us. You will have the ability to download and print documents we send to you through the DocuSign system during and immediately after the signing session and, if you elect to create a DocuSign account, you may access the documents for a limited period of time (usually 30 days) after such documents are first sent to you. After such time, if you wish for us to send you paper copies of any such documents from our office to you, you will be charged a \$0.00 per-page fee. You may request delivery of such paper copies from us by following the procedure described below.

Withdrawing your consent

If you decide to receive notices and disclosures from us electronically, you may at any time change your mind and tell us that thereafter you want to receive required notices and disclosures only in paper format. How you must inform us of your decision to receive future notices and disclosure in paper format and withdraw your consent to receive notices and disclosures electronically is described below.

Consequences of changing your mind

If you elect to receive required notices and disclosures only in paper format, it will slow the speed at which we can complete certain steps in transactions with you and delivering services to you because we will need first to send the required notices or disclosures to you in paper format, and then wait until we receive back from you your acknowledgment of your receipt of such paper notices or disclosures. Further, you will no longer be able to use the DocuSign system to receive required notices and consents electronically from us or to sign electronically documents from us.

All notices and disclosures will be sent to you electronically

Unless you tell us otherwise in accordance with the procedures described herein, we will provide electronically to you through the DocuSign system all required notices, disclosures, authorizations, acknowledgements, and other documents that are required to be provided or made available to you during the course of our relationship with you. To reduce the chance of you inadvertently not receiving any notice or disclosure, we prefer to provide all of the required notices and disclosures to you by the same method and to the same address that you have given us. Thus, you can receive all the disclosures and notices electronically or in paper format through the paper mail delivery system. If you do not agree with this process, please let us know as described below. Please also see the paragraph immediately above that describes the consequences of your electing not to receive delivery of the notices and disclosures electronically from us.

How to contact Makers Line LLC:

You may contact us to let us know of your changes as to how we may contact you electronically, to request paper copies of certain information from us, and to withdraw your prior consent to receive notices and disclosures electronically as follows:

To contact us by email send messages to: tracy@makersline.com

To advise Makers Line LLC of your new email address

To let us know of a change in your email address where we should send notices and disclosures electronically to you, you must send an email message to us at tracy@makersline.com and in the body of such request you must state: your previous email address, your new email address. We do not require any other information from you to change your email address.

If you created a DocuSign account, you may update it with your new email address through your account preferences.

To request paper copies from Makers Line LLC

To request delivery from us of paper copies of the notices and disclosures previously provided by us to you electronically, you must send us an email to tracy@makersline.com and in the body of such request you must state your email address, full name, mailing address, and telephone number. We will bill you for any fees at that time, if any.

To withdraw your consent with Makers Line LLC

To inform us that you no longer wish to receive future notices and disclosures in electronic format you may:

- i. decline to sign a document from within your signing session, and on the subsequent page, select the check-box indicating you wish to withdraw your consent, or you may;
- ii. send us an email to tracy@makersline.com and in the body of such request you must state your email, full name, mailing address, and telephone number. We do not need any other information from you to withdraw consent.. The consequences of your withdrawing consent for online documents will be that transactions may take a longer time to process..

Required hardware and software

The minimum system requirements for using the DocuSign system may change over time. The current system requirements are found here: <https://support.docusign.com/guides/signer-guide-signing-system-requirements>.

Acknowledging your access and consent to receive and sign documents electronically

To confirm to us that you can access this information electronically, which will be similar to other electronic notices and disclosures that we will provide to you, please confirm that you have read this ERSD, and (i) that you are able to print on paper or electronically save this ERSD for your future reference and access; or (ii) that you are able to email this ERSD to an email address where you will be able to print on paper or save it for your future reference and access. Further, if you consent to receiving notices and disclosures exclusively in electronic format as described herein, then select the check-box next to 'I agree to use electronic records and signatures' before clicking 'CONTINUE' within the DocuSign system.

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